



CHAPTER 11.

An Act to abolish the requirement that in determining the need and assessing the needs of applicants for unemployment assistance or supplementary pensions the resources of all members of their households must be taken into account, to make further provision for the determination of need and the assessment of needs in the case of such applicants and in connection with financial assistance to blind persons, and to provide for the winding-up of the Unemployment Assistance Fund. [26th March 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. On and after the appointed day so much of subsection (3) of section thirty-eight of the Unemployment Assistance Act, 1934, as requires that in the case of an applicant for an allowance under that Act, or of an applicant for a supplementary pension under the Old Age and Widows' Pensions Act, 1940, the resources of the applicant taken into account shall include the resources of all members of the household of which he is himself a member, shall cease to have effect.

Repeal of requirements as to resources of household.

24 & 25 Geo. 5.
c. 29.
3 & 4 Geo. 6.
c. 13.

2.—(1) On and after the appointed day the regulations made under the Unemployment Assistance Act, 1934, for the purposes of determining the need and assessing the needs of applicants for allowances under that Act, and the regulations made under the provisions of that Act applied by the Old Age and Widows' Pensions Act, 1940, for the like purposes in the case of applicants for supplementary pensions under that Act, shall, in particular, provide for the need of an applicant who is a member of a household being determined and his needs assessed

Provisions as to regulations for determining need and assessing needs of applicants who are members of households.

in conformity with the rules set out in the First Schedule to this Act.

(2) Within one month from the passing of this Act, draft regulations for the purpose of complying with the requirements of the foregoing provisions of this section shall be prepared, submitted, and made, in accordance with the provisions of subsection (2) of section fifty-two of the Unemployment Assistance Act, 1934, and as soon as may be after such draft regulations have been made the provisions of subsections (3) and (4) of that section (which relate to the laying of such drafts and of documents relating thereto before Parliament and to the making of regulations after approval by Parliament) shall be complied with in relation thereto.

Treatment of
war savings.

10 & 11 Geo. 5.
c. 49.

3.—(1) In computing the resources of any person whose resources are taken into account in determining the need or assessing the needs of an applicant for an allowance under the Unemployment Assistance Act, 1934, or of an applicant for a supplementary pension under the Old Age and Widows' Pensions Act, 1940, or the needs of any person for the purposes of subsection (1) of section two of the Blind Persons Act, 1920, any money and investments treated as capital assets of that person shall up to the following amount, that is to say :

- (i) in relation to any period after such date as His Majesty may by Order in Council determine, the amount of his war savings on that date ;
- (ii) in relation to any period before that date, the amount of his war savings at the date on which his resources are computed,

be disregarded in addition to any money or investments treated as capital assets which would be disregarded apart from the provisions of this subsection so, however, that the total amount of the money and investments of any person disregarded by virtue of this subsection shall not exceed three hundred and seventy-five pounds :

Provided that the provisions of this section shall not apply to the war savings of any person in relation to any period after the date so determined unless there is produced to the appropriate authority a certificate in the prescribed form certifying that, within such period after that date as may be prescribed, application has been made in the prescribed manner claiming that the provisions of this section shall continue to apply to those savings or that authority is satisfied that within that period application has been made for such a certificate.

(2) Where any investments are to be disregarded under subsection (1) of this section, the requirement that they shall be disregarded shall be construed as extending to any income receivable therefrom.

(3) References in this section to the amount of the war savings of any person at any date shall be construed as references to an amount ascertained in accordance with the provisions set out in the Second Schedule to this Act.

(4) The Treasury shall make regulations for the purposes of this section and such regulations may in particular authorise or require the Postmaster-General and his officers and any officers of a savings bank to make such disclosure of holdings of Government stock on the Post Office register and National Savings Certificates and of deposits in the bank as may appear necessary for the purposes of this section or of any corresponding enactment of the Parliament of Northern Ireland, notwithstanding that such disclosure is prohibited by or under any Act or by the rules of the bank in question.

(5) If any person, in furnishing any information as to his war savings or the war savings of any other person for the purposes of this section, makes any statement which he knows to be false in a material particular, or recklessly makes any statement which is false in a material particular, he shall be guilty of an offence and liable on summary conviction thereof to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and such fine.

(6) In this section the expression "the appropriate authority" means in relation to the computation of resources for the purposes of any of the enactments specified in subsection (1) of this section the authority whose function it is under that enactment to determine questions in connection with the computation of such resources, and the expression "prescribed" means prescribed by regulations made under this section.

(7) This section shall come into force on the appointed day.

4. Where an allowance under the Unemployment Assistance Act, 1934, or a supplementary pension under the Old Age and Widows' Pensions Act, 1940, is payable to a person under a determination granting such an allowance or supplementary pension in force immediately before the appointed day, then, at any time during the two months beginning on that day an allowance or supplementary pension may be paid to him in accordance with that determination until a further determination as to his need can be made. Transitory provisions.

5. In this Act the expression "the appointed day" in relation to allowances under the Unemployment Assistance Act, 1934, means the date on which regulations made under that Act for the purpose of complying with the requirements of subsection (1) of section two of this Act take effect, in accordance with the provisions of subsection (4) of section fifty-two of the first mentioned Act; in relation to supplementary pensions, means the date on which the like regulations made under the provisions Meaning of "the appointed day."

of that Act applied by the Old Age and Widows' Pensions Act, 1940, take effect in accordance with the provisions of the said subsection (4) ; and in relation to subsection (1) of section two of the Blind Persons Act, 1920, means such date as may be appointed as respects England and Wales by order of the Minister of Health and as respects Scotland by order of the Secretary of State.

Closing of
Unemploy-
ment Assis-
tance Fund.

6.—(1) The Unemployment Assistance Fund shall in accordance with directions given by the Treasury be wound up and closed.

(2) After such date as the Treasury by order declare to be the date on which the said fund is to be closed, all sums received by the Assistance Board shall be paid into the Exchequer and all expenses of the Board (including the amount of the allowances issued under the Unemployment Assistance Act, 1934) shall be defrayed out of moneys provided by Parliament :

Provided that the amount to be so defrayed for the purposes of the Unemployment Assistance Act, 1934, shall not in any year exceed such sum as may be approved by the Minister of Labour and National Service after consultation with the Assistance Board, with the consent of the Treasury :

(3) As soon as may be after the date declared by the Treasury in accordance with the provisions of the last foregoing subsection, the Assistance Board shall in accordance with directions given by the Treasury prepare a final account of the fund and submit it to the Comptroller and Auditor General, who shall examine the account and make a report thereon, and the account and report shall be laid before Parliament.

Consequential
amendments
of enactments.

7.—(1) In subsection (3) of section thirty-eight of the Unemployment Assistance Act, 1934 there shall, on and after the appointed day, be substituted for the words from " the resources of an applicant " to " whose resources are taken into account " the words " due regard shall be had to the personal requirements of all persons whose resources are taken into account ".

(2) Sections forty-four and forty-six and paragraph (b) of section forty-seven of the Unemployment Assistance Act, 1934, and subsection (2) of section fifteen of the Old Age and Widows' Pensions Act, 1940, are hereby repealed from the next day after the date declared by order of the Treasury to be the date on which the Unemployment Assistance Fund is to be closed.

Short title
and con-
struction of
enactments.

8.—(1) This Act may be cited as the Determination of Needs Act, 1941.

(2) References in this Act to any enactment or provision shall, unless the context otherwise requires, be construed as references to that enactment or provision as amended by any subsequent enactment including this Act.

(3) This Act shall not extend to Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

Section 2.

RULES TO BE COMPLIED WITH IN THE MAKING OF REGULATIONS FOR DETERMINING THE NEED AND ASSESSING THE NEEDS OF APPLICANTS WHO ARE MEMBERS OF HOUSEHOLDS.

1. Whether or not the applicant is the householder, the resources of members of the household, other than the applicant, the husband or wife of the applicant, and any member of the household dependent on the applicant, shall not be regarded as resources of the applicant.

2. Where the applicant is the householder or the husband or wife of the householder the resources of the applicant shall, unless exceptional circumstances are shown, be deemed to include such contributions as may be prescribed towards the expenses of the household from members of the household who are not dependent members.

3. Where the applicant is not the householder,—

(a) if the householder is the father or mother of the applicant and the income of the father and mother is of such amount as may be prescribed, or if the householder is the son or daughter of the applicant and the income of the householder is of such amount as may be prescribed, and if in either case there are no members of the household dependent on the applicant, the needs of the applicant shall, unless exceptional circumstances are shown, be deemed not to include the need of making contributions towards the cost of his board and lodging or the other expenses of the household ;

(b) if the provisions of the last foregoing sub-paragraph are inapplicable, then, unless the applicant has not attained the age of eighteen years, the needs of the applicant shall, unless exceptional circumstances are shown, be deemed to include the need of making such contributions by way of rent as may be prescribed.

4. In this Schedule the following expressions have the meanings hereby respectively assigned to them, that is to say,—

“Dependent member” means, in relation to an applicant, a member of the household who is a person dependent on or ordinarily supported by the applicant, not being a member in whose case the qualifications set out in subsection (1) of section thirty-six of the Unemployment Assistance Act, 1934, are fulfilled, and the expression “member of the household dependent on the applicant” shall be construed accordingly ;

“Prescribed” means prescribed by the regulations made in conformity with the requirements of section two of this Act ;

and other expressions have such meanings as may be prescribed.

1ST SCH.—
cont.

5. Save as therein expressly provided, nothing in these Rules shall be construed as affecting any power to make regulations for determining the need and assessing the needs of applicants for allowances under the Unemployment Assistance Act, 1934, or for supplementary pensions under the Old Age and Widows' Pensions Act, 1940, or as restricting the discretion of any authority having power to determine questions in connection with such applications.

Section 3.

SECOND SCHEDULE.MEANING OF THE EXPRESSION "WAR SAVINGS."

1. There shall first be ascertained, with respect to the person whose war savings are to be computed, as on the date at which they are to be computed, the aggregate of the following amounts, that is to say—

- (a) the amount of Government stock held on the Post Office register issued after the second day of September, nineteen hundred and thirty-nine, to which he is entitled either by reason of having subscribed therefor at the time of the issue thereof, or by inheritance ;
- (b) the amount of National Savings Certificates and Ulster Savings Certificates to which he is entitled ;
- (c) the amount of money which he has on loan to the Treasury without interest ; and
- (d) the amounts to which he is entitled which are standing to the credit of any account in the Post Office savings bank or a trustee savings bank or in any other savings bank specified in that behalf in regulations of the Treasury.

2. If the amount ascertained under the foregoing paragraph represents in whole or in part any such stock, certificates or amounts as aforesaid which were acquired with the proceeds of the realisation after the fourteenth day of August, nineteen hundred and forty, of any investments of that person, not being investments acquired by him by inheritance after the said fourteenth day of August, there shall be deducted from that amount the sum applied out of the said proceeds of realisation in acquiring the said stock, certificates or amounts :

Provided that in so far as the investments realised consisted of such stock, certificates or amounts as are mentioned in the last foregoing paragraph, a deduction shall only be made under this paragraph in so far as a deduction would have been required to be made thereunder if the person in question had not realised the said stock, certificates or amounts but had continued to retain them.

2ND SCH.—
cont.

3. There shall then be ascertained the aggregate amount of the National Savings Certificates, Ulster Savings Certificates and amounts standing to the credit of an account in any such savings bank as aforesaid to which the person in question was entitled immediately before the third day of September, nineteen hundred and thirty-nine, and the amount of the war savings of the person whose war savings are to be computed as on the date at which they are to be computed shall be taken to be the aggregate amount ascertained under paragraph 1 of this Schedule (as reduced in accordance with the provisions of paragraph 2 thereof) less the aggregate amount ascertained under the foregoing provisions of this paragraph.

4. For the purposes of this Schedule a person shall be deemed to be entitled to any stock, certificates or amounts if and only if he is absolutely entitled in possession to the whole beneficial interest therein ; and—

- (a) the expression " investment " includes any deposit or loan, being a deposit or loan bearing interest ;
- (b) the expression " Government stock " has the same meaning as in the Savings Bank Act, 1893 ;
- (c) the expression " trustee savings bank " means a bank in the United Kingdom or the Channel Islands certified under the Trustee Savings Bank Act, 1863 ;
- (d) the expression " by inheritance " means as a beneficiary under a will, intestacy or the nomination of a deceased person ;
- (e) references to amounts standing to the credit of an account in a trustee savings bank include any sums received in respect of special investments ; and
- (f) references to the amount at any date of any Government stock or National or Ulster Savings Certificates shall be treated as references, in the case of any such stock, to the amount originally subscribed therefor, and, in the case of any such certificates, to the amount for which those certificates could be encashed on that date.

56 & 57 Vict.
c. 69:26 & 27 Vict.
c. 87.